

1.

CASE #	CASE NAME	HEARING NAME
CVME2506586	BRADY VS HERNANDEZ	DEMURRER/MOTION TO STRIKE

Tentative Ruling: Demurrer to the Second Cause of Action is overruled. Motion to Strike Denied. Cross-Defendant to respond within 20 days. The only cause of action at issue is the second cause of action for fraud. The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.) Every element of the cause of action must be pled factually and specifically and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

On the previous demurrer, the sole issue was the lack of any specific allegation regarding intent to defraud at the time of the representations. The TAXC now makes it clear that the intent to defraud is alleged to be based on Plaintiff’s attempt to remain living in the Pequeno Property via initial promises to eventually purchase, followed by promises to vacate the Pequeno Property at the conclusion of the lease. (TAXC, ¶¶ 18-20; 22-24.) The TAXC sufficiently remedies the deficiency from the prior demurrer.

As with the prior motion, Plaintiff makes various other arguments regarding the factual merit of individual allegations within this cause of action. First, Plaintiff argues the statute of frauds bars this cause of action because promise to buy the Pequeno Property is oral and all agreements regarding the sale of property must be in writing. But this cause of action is not seeking to enforce the oral promise – it is alleging the oral promise was an intentional misrepresentation. The statute of frauds does not apply. The same reasoning defeats Plaintiff’s arguments regarding the parole evidence rule and lack of new consideration.

Plaintiff also makes multiple arguments regarding conflicting allegations when comparing the SAXC and the TAXC. Plaintiff argues that Sylvia relied on the 6/24/2021 promise to abandon efforts to purchase the Pequeno Property is inherently contradictory to the allegation that Brady had been in breach of the lease prior and that the lease started on 6/23/2021, only one day prior to the alleged “promise” upon which Sylvia relied. But this argument ignores the crux of the fraud allegation. The intentional misrepresentation is not the 6/24/2021 promise to abandon efforts to purchase the Pequeno Property. Rather, the TAXC clarifies that Sylvia would not have agreed to purchase the Bonita Property in December 2020 had she known that Plaintiff would neither purchase the Pequeno Property, nor vacate the Pequeno Property as a tenant at the end of the lease as promised on 6/24/2021. (See TAXC, ¶¶ 16, 19-21.) The TAXC alleges, “The true facts were that [Plaintiff] had no intention of moving from the [Pequeno Property] and he told [Sylvia] the lies set forth in Paragraph 18 to forestall the eviction proceedings....” (*Id.* at ¶ 21.) Plaintiff’s arguments are without merit because they focus on one part of the alleged fraud in order to create a contradiction with prior pleadings. The same reasoning defeats Plaintiff’s argument that deleting the allegation that Sylvia informed Brady that she would not longer sell him the Pequeno Property invokes the sham pleading doctrine. That argument ignores that the allegations of fraud continue with Plaintiff as a tenant, regardless of intent or ability to purchase.

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Motion to Strike – Plaintiff moves to strike the request for punitive damages.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

In tort cases, plaintiff may seek punitive damages for “oppression, fraud or malice” by the defendant. (Civ. Code § 3294(a).) As far as punitive damages, the complaint must include specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Punitive damages may not be pleaded generally. (*Id.*) It is not sufficient to allege merely that defendant “acted with oppression, fraud or malice.” Rather, plaintiff must allege specific facts showing that defendant’s conduct was oppressive, fraudulent or malicious (e.g., that defendant acted with the intent to inflict great bodily harm on plaintiff or to destroy plaintiff’s property or reputation). (*Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042; *Anschutz Entertainment Group, Inc. v. Snapp* (2009) 171 Cal.App.4th 598, 643.)

A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of “malice” or intent to injure plaintiff are required, because fraud is an alternative basis for recovery (“oppression, fraud or malice”). (*Stevens v. Sup.Ct. (St. Francis Med. Ctr.)* (1986) 180 Cal.App.3d 605, 610.) As stated above, the fraud claim is not subject to demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509005	MCGINNIS VS CITY OF MURRIETA	MOTION FOR DISCLOSURE AND USE OF PEACE OFFICER PERSONNEL AND OTHER RECORDS OF CITY OF MURRIETA

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2600071	ROWLEY VS MULL	ANTI-SLAPP MOTION

Tentative Ruling: Unopposed Motion is granted. The conduct alleged in the complaint constitutes an exercise of free speech and a matter of public interest.